

Devendra Sharma v. State of U.P. & Others

Allahabad High Court · Division Bench · 14 July 2011 · WRIT - C No. 38285 of 2011 · **Writ petition allowed (reconnection ordered; Rs. 10,000 costs)**

HEADNOTE

Clause 4.4 of the U.P. Electricity Supply Code, 2005 governs the processing of applications for a new connection, not the disconnection of an existing one; a dispute between landlord and tenant (or an allegedly incorrect tenancy declaration) is no ground to disconnect a validly sanctioned connection on which bills are regularly paid. A valid connection may be disconnected only on grounds authorised by the Electricity Act, 2003 and the Code (theft, unauthorised use, non-payment); disconnection for extraneous or malafide reasons is not merely a statutory breach but a violation of the right to life under Article 21.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

Clause 4.4 governs new connections, not disconnection over a landlord-tenant dispute

QUESTION

Can a licensee invoke Clause 4.4 to disconnect an existing, validly sanctioned connection because of a landlord-tenant dispute or an allegedly incorrect tenancy declaration?

HOLDING

No. Clause 4.4 applies to new-connection applications, not to disconnecting an existing connection. A landlord-tenant dispute is not a ground to cut a valid connection on which bills are paid; a connection may be disconnected only on grounds authorised by the Act/Code (theft, unauthorised use, non-payment). The disconnection here was illegal, arbitrary and malafide, and offended Article 21. ¶ 6-11

LIMITING FACTS

The tenant's connection (bills regularly paid) was disconnected on the landlady's complaint that she had terminated the tenancy and filed an eviction suit, without any inspection, theft/unauthorised-use allegation or non-payment.

PRINCIPLE TAGS

disconnection-not-for-landlord-tenant-dispute A landlord-tenant or ownership dispute is not a ground to disconnect a validly sanctioned electricity connection; the Code's new-connection procedure cannot be turned to that use. ¶ 6-8, 11

right-to-electricity-art21 Supply of electricity is necessary for a life with dignity; disconnection for reasons not authorised by the Act/Code, for malafide purposes, violates Article 21. ¶ 10

Sri Chandu Khamaru v. Smt. Nayan Malik & Ors.

Supreme Court of India · Division Bench · 2 September 2011 · (2011) 12 SCC 314 : AIR 2011 SC 2897 : (2011) 9 SCALE 598 · Civil Appeal No. 7572 of 2011 (arising out of SLP (C) No. 15332 of 2008) · **Appeal allowed to the extent indicated; orders of the Single Judge and Division Bench of the Calcutta High Court set aside; licensee directed to find an alternative route or follow the s.67(2) procedure within six months, existing supply not to be disconnected meanwhile**

HEADNOTE

Sections 42(1) and 43(1) of the Electricity Act, 2003 cast an affirmative statutory duty on a distribution licensee to supply electricity, on application, to the owner or occupier of any premises in its area of supply, and confer a correlative statutory right on the owner or occupier to apply for and obtain supply. A pending private/ownership dispute between the applicant and third parties — here over the passage of land through which the electric line must be drawn, the subject of a civil suit — cannot be a ground to deny the applicant supply to his house. Where the line must pass over land whose ownership is disputed and the owner/occupier objects to the works, the licensee must either find an alternative route to supply the applicant's premises or, if there is none, follow the procedure under Section 67(2) of the Act (the rules governing consent, and the authority that may grant permission where an owner/occupier objects to the carrying out of works), completing the exercise within six months; and pending that, the supply already effected to the applicant is not to be disconnected. The Supreme Court accordingly set aside the High Court's direction to disconnect the appellant's supply until he established his right to the land in the civil court.

HOLDING-UNITS

HOLDING-UNIT · EA2003::43

Statutory duty to supply owner/occupier; a pending private dispute is no ground to deny supply

QUESTION

Can a distribution licensee (or a court) deny an applicant supply of electricity to his premises because of a pending private/ownership dispute with third parties over the land through which the line must run?

HOLDING

No. Sections 42(1) and 43(1) cast a statutory duty on the licensee to supply an owner or occupier of premises in its area on application, and confer a correlative statutory right to obtain supply. A pending private dispute between the applicant and third parties (here over the passage of land, the subject of a civil suit) cannot be a ground to deny the applicant supply to his house; pending resolution of that dispute the applicant cannot be denied electricity. ¶ 6-11

LIMITING FACTS

Applicant's house had no supply; connection given on an earlier writ; third parties then obtained disconnection on the ground that the line ran over their disputed land; civil suit over the land pending.

HOLDING-UNIT · EA2003::67

Drawing a line over land whose owner objects: alternative route, else the s.67(2) permission procedure

QUESTION

Where the electric line must be drawn over land whose ownership is disputed and the owner/occupier objects to the works, how is supply to be effected?

HOLDING

The licensee must first ascertain whether there is any other way to draw the line to the applicant's house; if there is none, it must follow the procedure under Section 67(2) — the rules specifying the cases where consent is required and the authority which may grant permission where an owner/occupier objects to the works. The exercise is to be completed within six months, and until supply is effected by some other route the applicant's existing supply is not to be disconnected. ¶ 8-11

LIMITING FACTS

Line drawn through a passage on Dag Nos. 406/407/409 claimed by the respondents; applicant contended it was a common passage; ownership to be resolved in the civil suit.

PRINCIPLE TAGS

pending-private-dispute-no-ground-to-deny-supply A pending private/ownership dispute between the applicant and third parties is not a ground to deny the owner/occupier his statutory right to supply under s.43. ¶ 10-11

s43-duty-to-supply-owner-or-occupier-correlative-right Sections 42(1)/43(1) impose a duty to supply an owner or occupier on application and confer a correlative statutory right to obtain supply. ¶ 6-7

s67-line-over-objecting-owner-land-alternative-or-permission Where a line must cross land whose owner objects, the licensee must find an alternative route or follow the s.67(2) permission procedure, causing least damage and paying compensation. ¶ 8-11

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — OWNERSHIP OF THE DISPUTED PASSAGE (DAG NOS. 406/407/409)

Left to be resolved in Civil Suit No. 83 of 2004 (or any other suit); the Court decided only the entitlement to supply pending that resolution. ¶ 10-11

SCJ-264 · Sri Chandu Khamaru v. Smt. Nayan Malik & Ors. · (2011) 12 SCC 314 : AIR 2011 SC 2897 : (2011) 9 SCALE 598 · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.

Iftakhar Ahsan v. State of U.P. and others

Allahabad High Court · Division Bench · 3 January 2014 · 2014 SCC OnLine All 81 · Civil Misc. Writ Petition No. 71425 of 2013
 · **Mandamus refused; writ petition consigned to records**

HEADNOTE

Under Clause 4.4(a)(vi) of the U.P. Electricity Supply Code, 2005, the owner's consent is mandatory for a new electricity connection to an occupier/tenant, and a mandamus to grant a connection cannot issue where that consent is absent. The occupier-petitioner sought a connection relying on a temporary injunction against his landlord and on a Division Bench precedent (*Rajesh Kumar Gupta v. State of U.P.*) which had directed grant of a connection. The Court held that precedent turned on the provisions then in force and did not aid the petitioner, since the 2005 Code (Clause 4.4(a)(vi)), unchallenged by the petitioner, now makes the owner's consent a mandatory pre-condition; the petitioner had also not impleaded the landlord. Mandamus was refused, with liberty to approach the appropriate authority or seek remedy in the pending suit.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

Owner's consent is a mandatory pre-condition for a new connection to an occupier/tenant

QUESTION

Can a mandamus issue directing a new connection to an occupier/tenant without the owner's consent, relying on a pre-2005-Code precedent and a temporary injunction against the landlord?

HOLDING

No. Clause 4.4(a)(vi) of the 2005 Code makes the owner's consent mandatory for a new supply connection to an occupier. A pre-2005 precedent (*Rajesh Kumar Gupta*) decided under the then-existing provisions does not aid the petitioner, and the Code provision was neither challenged nor its consent requirement satisfied; the landlord was also not impleaded. Accordingly no mandamus could issue, and the petition was consigned to records with liberty to approach the appropriate authority or seek remedy in the pending suit. ¶ (pp. 540-541)

LIMITING FACTS

Occupier/tenant applicant; temporary injunction against the landlord in a civil dispute; reliance on *Rajesh Kumar Gupta* (2005); landlord not impleaded; Clause 4.4(a)(vi) unchallenged.

PRINCIPLE TAGS

owner-consent-mandatory-for-new-connection-clause-4.4 A new connection to an occupier/tenant requires the owner's consent under Clause 4.4(a)(vi); absent that consent no mandamus to connect can issue. ¶ (pp. 540-541)

precedent-under-superseded-provisions-does-not-govern-post-2005-code A judgment delivered under the provisions in force before the 2005 Code does not aid an applicant where the Code has since introduced a new mandatory requirement. Lead authorities: *Rajesh Kumar Gupta v. State of U.P.*. ¶ (pp. 540-541)

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Rajesh Kumar Gupta v. State of U.P.</i> 2005 (1) AWC 474 Allahabad High Court (Division Bench)	Under the provisions then in force, and in view of a temporary injunction in favour of the tenant, the electricity department could not refuse a connection to the tenant-applicant.	Distinguished: decided under the pre-2005-Code provisions; superseded by Clause 4.4(a)(vi) of the 2005 Code which makes the owner's consent mandatory, so it does not aid the petitioner. ¶ (pp. 540-541)	Petitioner	Distinguished

Seema Mansoor v. U.P. Power Corporation Ltd. & 3 Others

Allahabad High Court · Division Bench · 26 May 2014 · WRIT - C No. 28295 of 2014 · **Writ petition allowed; mandamus issued directing consideration and grant of connection**

HEADNOTE

A tenant/occupier's application for a new electricity connection cannot be refused solely for want of the landlord/owner's consent. Section 43 of the Electricity Act, 2003 casts a statutory duty on the distribution licensee to supply electricity to any owner or occupier applying for it, and Clause 2.2(oo) of the U.P. Electricity Supply Code, 2005 defines 'occupier' to include an authorised person in occupation (which includes a tenant). While Clause 4.4(a)(i) lists owner's consent (Annexure 4.3) among the documents ordinarily required, the Code itself provides an alternative route: Annexure 4.2, an indemnity bond that a tenant/lessee/occupier who cannot obtain the owner's consent may execute instead, indemnifying the licensee against any loss/claim arising from the owner's objection, recoverable from the occupier under the Revenue Recovery Act. Reading Clause 4.4 as providing either owner's consent OR an occupier's indemnity bond, a licensee cannot lawfully refuse connection to a tenant merely because a landlord (especially one embroiled in a rent dispute, using disconnection as leverage to evict) withholds consent — such an interpretation would nullify Rent Control Act protections and is against public policy. Two prior Division Bench decisions (Ravi Shankar Giri; Iftikhar Ahsan/Tanveer Azam) holding otherwise, having failed to notice ss.42/43 of the Act and Clause 4.4(a)(i)/Annexure 4.2 of the Code, do not lay down the correct law.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

A tenant/occupier cannot be refused a new electricity connection solely for want of the landlord's consent, since the Supply Code provides an alternative indemnity-bond route (Annexure 4.2) precisely for such situations; refusing connection on landlord-consent grounds alone nullifies Rent Control Act protections and is against public policy

QUESTION

Can a distribution licensee refuse a new electricity connection to a tenant/occupier solely because the landlord/owner of the premises has refused to give a no-objection/consent?

HOLDING

No. Section 43 of the Electricity Act, 2003 obliges the licensee to supply electricity to any owner OR occupier (a term the Supply Code, Clause 2.2(oo), defines to include an authorised person in occupation, i.e. a tenant) making a proper application. While Clause 4.4(a)(i) of the Code lists owner's consent (Annexure 4.3) among required documents, the Code simultaneously provides Annexure 4.2 — an indemnity bond specifically designed for the situation where 'the intending consumer is not the owner' and 'is not able to obtain the consent' of the owner — as an alternative route, indemnifying the licensee against loss/claims from the owner, recoverable under the Revenue Recovery Act if needed. Reading the Code holistically, a tenant cannot be denied connection merely for lack of landlord consent; to hold otherwise would let an unscrupulous landlord (here, one in an ongoing rent dispute who had already gotten the existing connection disconnected to pressure the tenant to vacate) defeat Rent Control Act protections by simply withholding consent — an interpretation contrary to both the statutory scheme and public policy. Two prior Division Bench rulings to the contrary (Ravi Shankar Giri; the Iftikhar Ahsan/Tanveer Azam line) were held not to lay down correct law, having overlooked ss.42/43 of the Act and Clause 4.4(a)(i)/Annexure 4.2 of the Code. Mandamus issued directing the licensee to consider and grant connection to the petitioner-tenant, subject to a proper application, indemnity bond, and fulfilment of other requirements. ¶ [unnumbered order \(full text\)](#)

LIMITING FACTS

The petitioner, a tenant embroiled in a rent dispute (depositing rent under s.30, U.P. Act No. 13 of 1972 due to the landlord's refusal to accept it), had her electricity supply disconnected by the landlord seeking to pressure her to vacate; her subsequent new-connection application was returned for want of the landlord's no-objection.

PRINCIPLE TAGS

clause-4.4-occupant-connection-on-indemnity-bond A tenant/occupier may obtain a new electricity connection via the Annexure 4.2 indemnity-bond route where the landlord withholds consent; this reinforces and extends the Clause 4.4 occupant-

connection principle already tracked in this corpus (SCJ-085, Mohd. Ashfaq Khan) to the new-connection (not just restoration) context, and explicitly holds that landlord-consent refusal cannot be an absolute bar. ¶ [unnumbered order](#)

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Ravi Shanker Giri v. Sub-Divisional Officer, U.P. Power Corporation Ltd. & Others</i> 2007 (4) AWC 3934 [193909] Allahabad High Court (DB)	Unless there is consent of the owner of the premises (as required under the Supply Code), electricity connection cannot be granted.	Overruled/held not to lay down correct law — decided without noticing ss.42/43 of the Electricity Act, the Code's definition of 'occupier', and Clause 4.4(a)(i)/Annexure 4.2's indemnity-bond alternative.	Respondent	Overruled
<i>Tanveer Azam v. State of U.P. & Others (also cited as Iftikhar Ahsan v. State of U.P.)</i> Writ Petition No. 71425 of 2013, order dated 3.1.2014 Allahabad High Court (DB)	Same as Ravi Shankar Giri — owner's consent required under the Code for grant of electricity connection.	Overruled/held not to lay down correct law, for the same reasons as Ravi Shankar Giri.	Respondent	Overruled

Smt. Sushama Chowdhary v. U.P. Power Corporation Ltd. thru. Chairman & 4 Ors.

Allahabad High Court (Lucknow Bench) · Division Bench (Chief Justice's Court) · 24 September 2014 · Misc. Bench No. 9588 of 2014 · **Writ petition allowed; the Executive Engineer's rejection order dated 2.8.2014 quashed; licensee directed to grant the connection on a fresh indemnity bond, without insisting on the owner's consent, within ten days**

HEADNOTE

Section 43(1) of the Electricity Act, 2003 casts an affirmative statutory obligation on a distribution licensee to supply electricity, on an application by the owner or occupier of premises, and confers a correlative statutory right on the owner or occupier to require supply; and Clause 4.4 of the U.P. Electricity Supply Code, 2005 is in aid of that duty. Annexure 4.2 of the Code (the indemnity-bond proforma) deals precisely with the situation where an occupier who applies for a connection is unable to produce the owner's consent — notably where the owner and occupier are in dispute (here, a family dispute between the petitioner and her brother, with a pending injunction suit). The petitioner, having furnished an indemnity bond describing herself as occupier and stating that she could not obtain the owner's consent because of the pending litigation, was wrongly refused a connection by an order that gave no reason beyond a bare reference to Clause 4.4; that order revealed a total non-application of mind and an unawareness of the Section 43 obligation. Applying the Supreme Court in *Chandu Khamaru v. Nayan Malik*, the Court quashed the rejection, directed that the owner's consent not be insisted upon, and ordered the connection to be granted on a fresh indemnity bond within ten days.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

Occupier's connection on an indemnity bond where the owner's consent is unavailable in an owner-occupier dispute

QUESTION

Can an occupier be refused a connection for want of the owner's consent where she is in an owner-occupier (family) dispute and has furnished an indemnity bond under Annexure 4.2 of the Code?

HOLDING

No. Clause 4.4 is in aid of the Section 43 duty to supply, and Annexure 4.2 provides expressly for the case of an occupier who cannot produce the owner's consent — the paradigm being an owner-occupier dispute. Having furnished an indemnity bond describing herself as occupier unable to obtain consent because of pending litigation, the petitioner could not be refused a connection by an order that merely referred to Clause 4.4 without reasons; such an order shows total non-application of mind and unawareness of the Section 43 obligation. The rejection was quashed, the licensee directed not to insist on the owner's consent, and the connection ordered to be granted on a fresh indemnity bond within ten days. ¶ (paras on pp. 1-2 of the order)

LIMITING FACTS

Occupier-petitioner in a family dispute with her brother (the fifth respondent, who had sought disconnection); pending injunction suit; indemnity bond under Annexure 4.2 furnished on 21.7.2014; EE's rejection (2.8.2014) cited only Clause 4.4.

PRINCIPLE TAGS

clause-4.4-occupant-connection-on-indemnity-bond An occupier who cannot obtain the owner's consent — especially in an owner-occupier dispute — is entitled to a connection on an Annexure 4.2 indemnity bond; the licensee cannot insist on the owner's consent. Lead authorities: *Chandu Khamaru v. Nayan Malik* [SCJ-264]. ¶ (pp. 1-2)

landlord-consent-not-required-for-tenant-connection-s43 Clause 4.4 is in aid of the s.43 duty; refusal of a connection to an occupier for want of the owner's consent, by a reasonless order, breaches that duty. ¶ (pp. 1-2)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — THE FAMILY/OWNERSHIP DISPUTE BETWEEN THE PETITIONER AND THE FIFTH RESPONDENT

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Chandu Khamaru v. Nayan Malik</i> (2011) 12 SCC 314 : AIR 2011 SC 2897 [SCJ-264] Supreme Court	Under Section 43(1) of the Electricity Act, 2003 a distribution licensee has a statutory duty to supply electricity to an owner or occupier of premises in its area on application, and every owner or occupier has a correlative statutory right to apply for and obtain supply.	Applied/followed to hold that the licensee was bound to supply the occupier-petitioner and could not insist on the owner's consent. ¶ (pp. 1-2)	Court	Applied

SCJ-265 · Smt. Sushama Chowdhary v. U.P. Power Corporation Ltd. thru. Chairman & 4 Ors. · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.

Dr. Mamta Tripathi v. State of U.P. & 6 Ors.

Allahabad High Court (Lucknow Bench) · Division Bench · 22 January 2015 · 2015 SCC OnLine All 1878 · Misc. Bench No. 12974 of 2014 · **Writ petition disposed of; application for connection to be processed on an indemnity bond**

HEADNOTE

Clause 4.4 of the U.P. Electricity Supply Code, 2005 is in aid of the statutory duty to supply electricity cast by Section 43 of the Electricity Act, 2003. Where an occupier of premises applies for a connection but is unable to produce the owner's consent — particularly where there is a dispute between owner and occupier (here a tenant against her landlord) — the Code provides for the connection to be granted on furnishing an Indemnity Bond in the proforma of Annexure 4.2. Following the Division Bench in *Sushama Chowdhary* (itself based on the Supreme Court's *Chandu Khamaru v. Nayan Malik*), the Court directed the electricity authority (LESA) to process the tenant's application on that basis, inform her of any other requirements within two days, and take a final decision within a week of her compliance.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

Occupier's connection on an indemnity bond where the owner's consent is unavailable

QUESTION

Can a tenant/occupier obtain an electricity connection in her own name without the landlord/owner's consent, where there is an owner-occupier dispute?

HOLDING

Yes. Clause 4.4, which aids the s.43 statutory duty to supply, provides that where an occupier cannot produce the owner's consent — especially in an owner-occupier dispute — a connection may be granted on furnishing an Indemnity Bond (Annexure 4.2). Absence of the landlord's consent is therefore no bar; the authority must process the tenant's application on that basis, subject to her fulfilling the other legal requirements. ¶ (order)

LIMITING FACTS

Tenant since 2012 receiving supply through the landlord's connection; supply disconnected; her fresh application met only with a demand for the rent agreement and landlord's consent, which she could not furnish due to a dispute.

PRINCIPLE TAGS

clause-4.4-occupant-connection-on-indemnity-bond An occupier unable to produce the owner's consent (e.g. an owner-occupier dispute) is entitled to a connection on an Indemnity Bond under Clause 4.4, which serves the s.43 duty to supply; consent of the owner is not an absolute precondition. Lead authorities: *Smt. Sushama Chowdhary v. U.P. Power Corporation Ltd.*, *Chandu Khamaru v. Smt. Nayan Malik*. ¶ (order)

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Smt. Sushama Chowdhary v. U.P. Power Corporation Ltd.</i> Misc. Bench No. 9588 of 2014 (Allahabad HC, 24-09-2014) Allahabad High Court (Division Bench)	Clause 4.4 of the Code is in aid of the s.43 duty to supply; an occupier unable to produce the owner's consent (owner-occupier dispute) may obtain a connection on an Indemnity Bond (Annexure 4.2), and a denial merely citing Clause 4.4 without reasons is bad.	Followed and quoted as the governing Division Bench authority. ¶ (order)	Court	Followed
<i>Chandu Khamaru v. Smt. Nayan Malik</i> AIR 2011 SC 2897 Supreme Court	An occupier/tenant is entitled to an electricity connection and the owner's consent is not an indispensable precondition; the statutory duty to supply cannot be	Relied on (via <i>Sushama Chowdhary</i>) as the Supreme Court foundation for the indemnity-bond route. ¶ (order)	Court	Relied on

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
	defeated for want of the owner's consent.			

SCJ-190 · Dr. Mamta Tripathi v. State of U.P. & 6 Ors. · 2015 SCC OnLine All 1878 · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.

Dakshinanchal Vidyut Vitran Nigam Ltd. v. Permanent Lok Adalat and Another

Allahabad High Court · Division Bench · 20 December 2016 · 2016 SCC OnLine All 1179 · Writ - C No. 11612 of 2015 · **Writ petition allowed; the Permanent Lok Adalat's award directing a connection on an indemnity bond quashed, with liberty to apply afresh in compliance with the Code**

HEADNOTE

A Permanent Lok Adalat has jurisdiction to entertain a consumer's grievance over refusal of an electricity connection (a public-utility service) - such jurisdiction being in addition to, not in derogation of, the fora under the Electricity Act, 2003 - but it cannot direct the licensee to act contrary to the Act and the U.P. Electricity Supply Code, 2005. Under Section 43 the licensee must supply an owner or occupier, and Clause 4.4 of the 2005 Code allows a non-owner occupier to apply on an indemnity bond (Annexure 4.2) in place of the owner's consent (Annexure 4.3), but only on producing proof of occupancy (valid power of attorney / latest rent receipt / registered lease deed). Here the applicant was neither owner (the property stood in his father's name, with a pending civil suit) nor able to furnish proof of occupancy; the Lok Adalat's award directing a connection merely on an indemnity bond was contrary to Clause 4.4 and was quashed.

HOLDING-UNITS

INTERPLAY · UP-2005::4.4

Occupier's new connection requires proof of occupancy plus indemnity bond; Lok Adalat cannot order otherwise

QUESTION

Can a Permanent Lok Adalat direct grant of a connection to a non-owner occupier who furnishes only an indemnity bond, without proof of occupancy, and does it have jurisdiction at all?

HOLDING

The Permanent Lok Adalat has jurisdiction over such a public-utility grievance (in addition to, not in derogation of, the Act's fora), but it cannot direct action contrary to law. Section 43 obliges the licensee to supply an owner or occupier; under Clause 4.4 a non-owner occupier may apply on an indemnity bond (Annexure 4.2) instead of the owner's consent (Annexure 4.3), but must produce proof of occupancy (valid power of attorney / latest rent receipt / registered lease deed). As the applicant was not the owner (property in his father's name, civil suit pending) and furnished no proof of occupancy, the award directing a connection on a mere indemnity bond was contrary to Clause 4.4 and was quashed, with liberty to apply afresh in compliance with the Code. ¶ 8-19

LIMITING FACTS

Applicant sought a 5 KW LMV-6 connection; property stood in his father's name with a pending civil suit (Sunil Kumar v. Jung Bahadur); no proof of occupancy furnished; Lok Adalat's two-member award directed connection on an indemnity bond (the Chairman having disowned the claim).

PRINCIPLE TAGS

permanent-lok-adalat-jurisdiction-over-public-utility-electricity-grievance A Permanent Lok Adalat may entertain a consumer's grievance over refusal of an electricity connection; its jurisdiction is in addition to, not in derogation of, the Act's fora. Lead authorities: *Bar Council of India v. Union of India*. ¶ 9-10

lok-adalat-cannot-direct-action-contrary-to-code A Lok Adalat cannot direct the licensee to grant a connection in a manner contrary to the Act and the Supply Code. ¶ 17-18

occupier-needs-proof-of-occupancy-plus-indemnity-bond-clause-4.4 A non-owner occupier may obtain a connection on an indemnity bond (Annexure 4.2) in lieu of owner's consent, but only on producing proof of occupancy (PoA / rent receipt / registered lease). ¶ 13-16

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — THE OWNERSHIP DISPUTE BETWEEN THE APPLICANT AND HIS FATHER

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Bar Council of India v. Union of India</i> (2012) 8 SCC 243 Supreme Court	The Permanent Lok Adalat mechanism (Chapter VI-A, Legal Services Authorities Act, 1987) for public-utility disputes provides a speedy remedy and, failing settlement, may decide on merits; it is in addition to, not in derogation of, fora created under special statutes.	Relied on to hold the Permanent Lok Adalat had jurisdiction to entertain the connection grievance. ¶ 9-10	Court	Relied on

SCJ-249 · Dakshinanchal Vidyut Vitran Nigam Ltd. v. Permanent Lok Adalat and Another · 2016 SCC OnLine All 1179 · Supply Code Jurisprudence
A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.

Vandana Srivastava v. Purvanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 9 May 2017 · 2017 SCC OnLine All 3976 · C.M.W.P. No. 13816 of 2017 · **Writ petition dismissed for suppression of material facts**

HEADNOTE

A petitioner seeking a new electricity connection to a shop on the strength of a claimed tenancy — where the tenancy is disputed and the subject of civil litigation — must approach the writ court with clean hands. Here the trial court had, at the interim stage, recorded a categorical finding that the petitioner failed to establish even a prima facie case of tenancy and had rejected her temporary-injunction application; that order and finding, being material to the grievance (particularly to any interim relief on the connection), were suppressed in the writ petition. The writ court will not interfere for a petitioner who has not come with clean hands; the petition was dismissed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

Clean hands required; concealment of an adverse civil finding on tenancy bars writ relief

QUESTION

Can a claimed tenant obtain a mandamus for a new connection while suppressing a trial court's finding that she failed to establish tenancy even prima facie?

HOLDING

No. Although the distribution licensee was not a party to the suit and no connection relief was sought there, the trial court's finding on the petitioner's status as tenant is relevant to the writ grievance, at least for interim relief. Suppression of that material fact means the petitioner did not approach the Court with clean hands, and the writ court will not interfere; the petition is dismissed. ¶ 9-12

LIMITING FACTS

Connection sought on an indemnity bond for a shop; premises subject to a pending civil suit; temporary-injunction application rejected on 6.3.2017 with a finding of no prima facie tenancy, filed 20 days before the writ and not disclosed in it.

PRINCIPLE TAGS

clean-hands-required-material-concealment-bars-writ Suppression of a material fact — here an adverse civil-court finding on the petitioner's tenancy relevant to the connection claim — disentitles the petitioner to discretionary writ relief. ¶ 10-12

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — THE PETITIONER'S ENTITLEMENT TO A CONNECTION ON THE MERITS

Not decided; the writ was dismissed on the threshold ground of unclean hands / suppression, without adjudicating the tenancy or the connection entitlement. ¶ 12

Smt. Beena Dubey v. M.D. Kanpur Electricity Supply Co. Ltd. & 4 Others

Allahabad High Court · Division Bench · 21 September 2017 · WRIT - C No. 42074 of 2017 · **Writ petition disposed of; recovery proceedings against the landlord-petitioner upheld, with liberty to seek redressal/pursue the tenant**

HEADNOTE

Under Clause 4.3(f)(vi) of the U.P. Electricity Supply Code, 2005, where an electricity connection is given to a tenant with the landlord's consent, the landlord's liability for clearing all electricity arrears/dues becomes co-extensive with the tenant's before the tenant vacates the premises — even though the landlord never directly gave consent or an undertaking of liability to the Electricity Department, a tenancy agreement clause (permitting the tenant to obtain the connection and bear its charges) suffices as the owner's consent under Clause 4.4(a)(vi) for the connection to be given in the first place, and Clause 4.3(f)(vi) then independently imposes co-extensive liability on the landlord for clearing dues before the tenant's departure. Recovery from the landlord is accordingly lawful, without prejudice to the landlord's remedies (civil recovery, cheque-dishonour prosecution under s.138 Negotiable Instruments Act, or the licensee's own action) against the defaulting tenant, and without prejudice to the landlord seeking installment or other relief available under the Supply Code.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.3(f)(vi)

A landlord's liability for a tenant's electricity dues becomes co-extensive under Clause 4.3(f)(vi) once the connection was given with the landlord's consent (which may be evidenced by a tenancy-agreement clause, even absent a direct undertaking to the licensee), requiring the landlord to clear arrears before the tenant vacates

QUESTION

Can electricity dues, accrued on a connection held in a departed tenant's name, be recovered from the landlord-owner of the premises, where the landlord never directly gave the Electricity Department any consent or undertaking of liability, but the tenancy agreement itself contemplated the tenant obtaining the connection and bearing the charges?

HOLDING

Yes. Clause 4.4(a)(vi) requires the owner's consent for a new connection; here such consent, while not directly endorsed to the Electricity Department, is evidenced by Clause 5 of the tenancy agreement between the landlord and tenant contemplating the tenant obtaining the connection in his own name and bearing its charges — the landlord accordingly did not object to (and effectively agreed to) the connection. Separately and independently, Clause 4.3(f)(vi) makes the landlord's liability co-extensive with the tenant's for clearing all electricity arrears/dues before the tenant vacates the premises — a liability arising from the Supply Code itself, not from any direct undertaking to the Department. Since the tenant had already vacated without clearing dues, recovery from the landlord was lawful and the recovery proceedings were not quashed, though the landlord retains recourse against the tenant (civil suit, s.138 Negotiable Instruments Act prosecution over a dishonoured cheque, or the licensee's own separate action against the tenant) and may seek installment or other relief available under the Code. ¶ [unnumbered order \(full text\)](#)

LIMITING FACTS

The petitioner, landlord of the premises, let it to respondent no. 5, who obtained an electricity connection in his own name per Clause 5 of their tenancy agreement (making the tenant responsible for the connection and its charges); the tenant vacated leaving dues unpaid (including a dishonoured cheque tendered towards the dues), and recovery proceedings (22.8.2017) were initiated against the landlord.

PRINCIPLE TAGS

[clause-4.3-f-vi-landlord-co-extensive-liability-for-tenant-dues](#)

A landlord's liability for a departed tenant's electricity dues is co-extensive under Clause 4.3(f)(vi), triggered once the connection was given with the landlord's consent (which a tenancy-agreement clause can itself evidence); this reinforces and extends this corpus's arrears/occupant-liability cluster (SCJ-090, SCJ-098) into the landlord-tenant context. ¶ [unnumbered order](#)

NOT DECIDED — NEGATIVE AUTHORITY

SCJ-124 · Smt. Beena Dubey v. M.D. Kanpur Electricity Supply Co. Ltd. & 4 Others · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.

Gaurav Sharma v. State of U.P. & 4 Others

Allahabad High Court · Division Bench · 18 September 2018 · WRIT - C No. 8396 of 2018 · **Writ petition allowed (refusal quashed; connection to be reconsidered)**

HEADNOTE

Under Section 43(1) of the Electricity Act, 2003, an owner or occupier of any premises has a statutory right to a connection, and the licensee a corresponding duty to supply. Clause 4.4 of the U.P. Electricity Supply Code, 2005 and the Indemnity Bond (Annexure 4.2) enable a genuine occupier — including a family member in separate possession who cannot obtain the owner's NOC — to obtain a connection; the object of the bond is only to exclude a trespasser or house-grabber. A connection cannot be refused merely because of a family dispute or the absence of the owner's consent.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

Connection to a genuine occupier on an indemnity bond, without the owner's NOC

QUESTION

Can a licensee refuse a connection to a genuine occupier (a son in separate possession) because the owner (his father) refuses consent amid a family dispute?

HOLDING

No. Section 43(1) confers on an occupier a statutory right to supply; Clause 4.4 read with Annexure 4.2 lets a genuine occupier unable to obtain the owner's NOC furnish an indemnity bond and obtain a connection. The object of the bond is only to exclude a trespasser/house-grabber; a family dispute or want of the owner's consent is no ground to refuse. Refusal quashed and remitted for reconsideration. ¶ 6-13

LIMITING FACTS

The petitioner, a son in separate possession of one of his father's houses (paying house tax), was refused a connection because the father declined to give an NOC amid a family dispute.

PRINCIPLE TAGS

occupier-entitled-to-connection-on-indemnity-bond A genuine occupier (including a family member in separate possession) has a statutory right under s.43(1) to a connection and may furnish an indemnity bond (Annexure 4.2) where the owner's NOC is unavailable; the bond only excludes trespassers/house-grabbers. Lead authorities: *Seema Mansoor v. U.P. Power Corporation* [80741415], *Chandu Khamaru v. Nayan Malik*. ¶ 6-12

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Seema Mansoor v. U.P. Power Corporation Ltd. & Others</i> 2014 (6) ADJ 672 (DB) [80741415] Allahabad High Court (DB)	Under Clause 4.4 and Annexure 4.2 of the Code, a lessee/tenant/occupier cannot be refused a connection merely for want of the landlord's consent; the indemnity bond enables the occupier to obtain supply.	Followed as the governing authority on the occupier's entitlement. ¶ 8	Petitioner	Followed
<i>Smt. Sushama Chowdhary v. U.P. Power Corporation Ltd. & 4 Others</i> Misc. Bench No. 9588 of 2014 (Allahabad HC, DB) [864936] Allahabad High Court (DB)	Section 43(1) casts an affirmative obligation on the licensee to supply an owner or occupier; Clause 4.4 is in aid of that duty, and an occupier who cannot get the owner's consent may furnish an indemnity bond (Annexure 4.2).	Relied on and quoted for the s.43(1) obligation and the indemnity-bond route. ¶ 9	Court	Relied on

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Chandu Khamaru v. Smt. Nayan Malik</i> AIR 2011 SC 2897 Supreme Court	Under Section 43(1), a distribution licensee has a statutory duty to supply an owner or occupier who applies, and the occupier a corresponding statutory right; a family dispute does not deprive a person of a connection.	Relied on (through Sushama Chowdhary) for the statutory right of an occupier. ¶ 9	Court	Relied on

SCJ-027 · Gaurav Sharma v. State of U.P. & 4 Others · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.

Husna Bano v. State of U.P. & 9 Others

Allahabad High Court · Division Bench · 13 August 2019 · WRIT - C No. 26569 of 2019 · **Writ petition allowed (refusal set aside; application to be reconsidered on the indemnity bond + ID proof)**

HEADNOTE

A tenant/occupier who cannot obtain the landlord's NOC (here, amid a landlord-tenant and succession dispute) is entitled to a fresh electricity connection on furnishing an Indemnity Bond under Annexure 4.2 of the U.P. Electricity Supply Code, 2005; proof of possession may be shown by a Ration Card and Aadhaar (rent often being paid in cash, a rent receipt may not exist). The indemnity bond is not a document of title and the grant of a connection does not bar an eviction suit, so a landlord's refusal of NOC is no ground to deny supply. Section 43(1) casts a statutory duty to supply an owner or occupier.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

Tenant/occupier's connection on an indemnity bond amid a landlord-tenant dispute

QUESTION

Can a tenant be denied a fresh connection for want of the landlord's NOC where she has furnished an indemnity bond and proof of possession (Ration Card/Aadhaar)?

HOLDING

No. Annexure 4.2 (Clause 4.4) enables an occupier who cannot obtain the owner's NOC to obtain a connection on an indemnity bond; possession can be shown by a Ration Card and Aadhaar (cash rent often leaving no receipt). The bond is not a document of title, and a connection does not bar an eviction suit; the landlord's refusal of NOC is no ground to deny supply. Refusal set aside and remitted for reconsideration. ¶ 5-8

LIMITING FACTS

After the landlady's death, her heirs (in a succession dispute) got the old connection cancelled and refused an NOC; the tenant furnished an indemnity bond (Annexure 4.2) plus Ration Card and Aadhaar.

PRINCIPLE TAGS

occupier-entitled-to-connection-on-indemnity-bond

A tenant/occupier unable to obtain the owner's NOC may obtain a connection on an indemnity bond (Annexure 4.2); the bond is not a title document, and a landlord-tenant/succession dispute is no ground to deny the basic necessity of electricity. Lead authorities: *Gaurav Sharma v. State of U.P.* [56197396], *Chandu Khamaru v. Nayan Malik*. ¶ 6-7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LANDLORD-TENANT / POSSESSION DISPUTE

Possession as tenant or otherwise was treated as a question of fact for the competent civil court; the connection does not bar the pending eviction/injunction suit. ¶ 5-6

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Gaurav Sharma v. State of U.P. & Others</i> Writ-C No. 8396 of 2018 (Allahabad HC, DB) [56197396] Allahabad High Court (DB)	A genuine occupier has a statutory right under s.43(1) to a connection and may furnish an indemnity bond (Annexure 4.2) where the owner's NOC is unavailable; a family dispute is no ground to refuse. [SCJ-027 in this corpus.]	Followed (its paragraph 9 quoted) as directly governing. ¶ 7	Court	Followed
<i>Smt. Sushama Chowdhary v. U.P. Power Corporation</i>	Section 43(1) casts an affirmative duty to supply an owner or occupier;	Relied on (through <i>Gaurav Sharma</i>) for the s.43(1) obligation. ¶ 7	Court	Relied on

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Ltd.</i> Misc. Bench No. 9588 of 2014 (Allahabad HC, DB) [864936] Allahabad High Court (DB)	the indemnity bond (Annexure 4.2) covers the case where the occupier cannot produce the owner's consent.			
<i>Chandu Khamaru v. Smt. Nayan Malik</i> AIR 2011 SC 2897 Supreme Court	Under Section 43(1), a distribution licensee has a statutory duty to supply an owner or occupier who applies, and a family dispute does not deprive a person of a connection.	Relied on (through Sushama Chowdhary/Gaurav Sharma) for the occupier's statutory right. ¶ 7	Court	Relied on

SCJ-033 · Husna Bano v. State of U.P. & 9 Others · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.

Divya Sahani v. State of U.P. & Another

Allahabad High Court · Division Bench · 17 March 2021 · AIRONLINE 2021 ALL 373 · WRIT - C No. 2008 of 2021 · **Writ petition allowed (mandamus to grant connection)**

HEADNOTE

Clause 4.4 of the U.P. Electricity Supply Code, 2005 nowhere prohibits the grant of an electricity connection merely because the property is the subject of a pending civil dispute; Clause 4.4(a)(i) requires only that, where ownership is in litigation, a copy of the court's order be furnished. An electricity connection confers no title (Note-3 of Annexure 4.1). Disconnection or refusal solely on the ground of a pending suit is de hors the law and offends the right to live with dignity under Article 21.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

Pendency of a property dispute is not a ground to refuse/disconnect a connection

QUESTION

Can a connection be disconnected or refused merely because the premises are the subject of a pending civil suit?

HOLDING

No. Clause 4.4 does not prohibit a connection because of a pending property dispute; Clause 4.4(a)(i) only requires that a court-order copy be furnished where ownership is in litigation. A connection is not proof of title (Note-3, Annexure 4.1). Disconnection solely for the pendency of a suit is de hors the law and violates Article 21; mandamus issued to grant the connection. ¶ 6-8

LIMITING FACTS

A connection granted on 24.8.2020 was disconnected on 31.8.2020 solely because the property was the subject of a civil suit (objection by a relative); there were no outstanding dues on the premises.

PRINCIPLE TAGS

disconnection-not-for-landlord-tenant-dispute A pending ownership/property dispute is not a ground to refuse or disconnect a connection; a connection confers no title, so the supply question is independent of the title dispute. ¶ 7

right-to-electricity-art21 Supply of electricity to an occupant is fundamental to living with dignity under Article 21; refusal/disconnection on extraneous grounds offends it. ¶ 7

Daya Nand Sharma v. State of U.P. & Others

Allahabad High Court · Division Bench · 3 September 2022 · 2022 SCC OnLine All 598 · Special Appeal Defective No. 395 of 2022 · **Interim order — contempt-court direction and contempt proceedings stayed**

HEADNOTE

Interim order in an intra-court appeal. A writ court had disposed of a tenant's petition by directing the licensee to grant him a connection on furnishing an indemnity bond under Clause 4.4 of the U.P. Electricity Supply Code, 2005 'ignoring the objection of the landlord' — but without deciding whether the tenant was in occupation, and without directing that supply be made even if the owner resisted. When the owner resisted installation, the contempt court directed the department and police to provide the connection within 72 hours and that the owner not object. Prima facie holding that the contempt court's direction travelled beyond the writ court's order (which neither adjudicated occupation nor directed supply against the owner's resistance), and noting that where an owner objects to supply over his premises the licensee must obtain the District Magistrate's/Commissioner's permission under the proviso to Rule 3(b) of the Works of Licensees Rules, 2006 (framed under s.176(2)(e) read with s.67(2) of the Electricity Act, 2003), the Court stayed both the contempt direction and the contempt proceedings. It also held (following *Midnapore People's Co-op. Bank v. Chunilal Nanda*) that a special appeal is maintainable where a contempt court issues a direction in the nature of writ-court powers beyond the writ court's order.

HOLDING-UNITS

INTERPLAY · EA2003::176

Owner's objection to supply over his premises; DM's permission required — interim

QUESTION

(Interim) Could the contempt court direct immediate installation of a tenant's connection over the owner's objection, beyond the writ court's order?

HOLDING

Prima facie, no. The writ court had directed a connection on an indemnity bond (Clause 4.4) ignoring the landlord's objection, but did not decide the tenant's occupation nor direct supply despite the owner's resistance. Where an owner objects to supply over his premises, the licensee must obtain the DM's/Commissioner's permission under the proviso to Rule 3(b) of the Works of Licensees Rules, 2006 (s.176(2)(e) r/w s.67(2)). The contempt court's direction to install within 72 hours and bar the owner's objection travelled beyond the writ order and was stayed, along with the contempt proceedings. ¶ 11-14

LIMITING FACTS

Tenant granted a connection on indemnity bond by the writ court; owner (claiming possession) resisted installation; contempt filed; no DM permission shown for works over the objecting owner's premises.

FLAG Interim order (stay) in a special appeal; the occupation dispute and merits are reserved.

INTERPLAY · CONTEMPT::special-appeal-maintainability

Special appeal lies where a contempt court exercises writ-court powers beyond the writ order

HOLDING

A special appeal is maintainable, notwithstanding that no punishment order was passed, where the contempt court issues a direction in the nature of the exercise of writ-court powers, even beyond the scope of the order passed by the writ court. ¶ 9-10

FLAG Procedural node recorded for the ledger; the electricity-law substance is the Rule 3(b) / owner-objection point above.

PRINCIPLE TAGS

owner-objection-to-supply-requires-dm-permission-rule-3b Where an owner objects to a licensee laying/supplying over his premises, the licensee must obtain the DM's/Commissioner's permission under the proviso to Rule 3(b) of the Works of

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE TENANT IS IN LAWFUL OCCUPATION AND ENTITLED TO SUPPLY OVER THE OWNER'S RESISTANCE

The writ court never decided occupation; the special appeal court granted only interim stay, reserving the merits. ¶ 11-13

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
Midnapore People's Co-op. Bank v. Chunilal Nanda (2006) 5 SCC 399 Supreme Court	Where a contempt court issues a direction in the nature of the exercise of writ-court powers, even beyond the scope of the writ court's order, a special appeal against that direction is maintainable.	Followed to hold the special appeal maintainable despite no punishment order. ¶ 10	Appellant	Followed

Anand Kumar v. State of U.P. & 2 Others

Allahabad High Court · Division Bench · 17 February 2023 · WRIT - C No. 32847 of 2022 · **Writ petition disposed of (direction to process the tenant's connection application)**

HEADNOTE

Under the U.P. Electricity Supply Code, 2005 a 'premises' (Clause 2(ss)) is the specific portion for which a connection is sought, and a tenant is an 'occupier' (Clause 2(oo)) with a statutory right to apply for supply. The arrears-bar in the third proviso to Clause 4.1 operates only against dues on the same premises; by Clause 4.3(h) a licensee cannot refuse a new connection to an occupier of a distinct sub-premises on the ground that dues on other portions of the building are unpaid, and must instead pursue the defaulters under Clause 4.3(f)(v). A tenant may obtain a connection on an indemnity bond (Annexure 4.2, Clause 4.4) where the owner's consent is absent.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.1

Arrears-bar is premises-specific; connection to a tenant/occupier of a distinct premises

QUESTION

Can a licensee refuse a new connection to a tenant of a shop because of electricity dues outstanding against other portions of the same building?

HOLDING

No. The arrears-bar in the third proviso to Clause 4.1 applies only to dues on the same 'premises' (Clause 2(ss)); the shop is a distinct premises and the tenant is an 'occupier' (Clause 2(oo)) entitled to apply. Clause 4.3(h) forbids refusal on the ground of dues on other portions; the licensee must instead pursue the defaulters under Clause 4.3(f)(v). ¶ 11, 14, 16-18

LIMITING FACTS

No dues were specific to the shop occupied by the petitioner; the alleged dues were against other persons/portions of the building.

HOLDING-UNIT · UP-2005::4.4

Tenant's connection on an indemnity bond absent owner's consent

HOLDING

Following *Seema Mansoor*, an occupier (including a tenant) has a statutory right to supply under Sections 42-43 read with Clause 4.4; where the owner's consent is unavailable, the tenant may file an indemnity bond (Annexure 4.2) to obtain the connection. ¶ 12

PRINCIPLE TAGS

arrears-bar-is-premises-specific The bar on a new connection for arrears attaches only to the specific premises in default, not to other portions of a building. ¶ 11, 17

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LANDLORD-TENANT RELATIONSHIP

The Court expressly declined to record any finding on the landlord-tenant relationship; the direction is only to process the connection application after hearing the owner. ¶ 19-20

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Seema Mansoor v. U.P. Power Corporation & 3</i>	An occupier (including a tenant) has a statutory right under Sections 42-	Followed and relied on to hold the tenant entitled to have the	Court	Followed

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Others</i> 2014 (6) ADJ 672 [80741415] Allahabad High Court	43 and Clause 4.4 of the Code to apply for and obtain supply; where the owner's consent is absent, the indemnity-bond route (Annexure 4.2) is available.	application processed. ¶ 12-13		

SCJ-006 · Anand Kumar v. State of U.P. & 2 Others · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.

Deepak Jain v. State of U.P. & Others

Allahabad High Court · Division Bench · 4 September 2023 · 2023 SCC OnLine All 890 · Writ - C No. 24689 of 2023 · **Writ petition disposed of; connection application to be decided in four weeks**

HEADNOTE

Electricity supply, monopolised by the U.P. Power Corporation, is essential for life. A tenant/occupier cannot be refused an electricity connection merely for want of the landlord's consent. Following the Division Bench in *Seema Mansoor v. U.P. Power Corporation Ltd.*, the application of a tenant is to be considered under Clause 4.4 read with Annexures 4.2 and 4.3 of the U.P. Electricity Supply Code, 2005, which provide either for a consent letter of the owner or, in its absence, an Indemnity Bond furnished by the lessee/tenant/occupier. The Court directed the competent authority to decide the tenant's pending application within four weeks after hearing the parties with a stake.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

Tenant's connection: owner's consent letter OR indemnity bond

QUESTION

Can a tenant be refused a connection for want of the landlord's consent?

HOLDING

No. A lessee/tenant/occupier cannot be refused a connection merely for want of the landlord's consent; under Clause 4.4 read with Annexures 4.2 and 4.3, the application is considered either on a consent letter of the owner or, in its absence, on an Indemnity Bond furnished by the tenant. The competent authority must decide the tenant's application within four weeks after hearing the stakeholders. ¶ 3-4

LIMITING FACTS

Tenant of a first-floor portion; application allotted a service number and inspection done, but connection not provided.

PRINCIPLE TAGS

clause-4.4-occupant-connection-on-indemnity-bond A tenant/occupier is entitled to a connection under Clause 4.4 on the owner's consent letter or, absent it, an Indemnity Bond (Annexures 4.2/4.3); want of the landlord's consent is no ground to refuse. Lead authorities: *Seema Mansoor v. U.P. Power Corporation Ltd.*. ¶ 3

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Seema Mansoor v. U.P. Power Corporation Ltd.</i> Writ - C No. 28295 of 2014 (Allahabad HC, Division Bench) Allahabad High Court (Division Bench)	An application for a connection cannot be refused for want of the landlord's consent; on furnishing an indemnity bond, a lessee/tenant/occupier cannot be refused a connection merely for want of consent of the landlord.	Followed as the governing Division Bench authority. ¶ 3	Court	Followed

Dr. Ashok Kumar Sharma & Another v. State of U.P. & 4 Others

Allahabad High Court · Division Bench · 23 February 2024 · 2024:AHC:31947-DB · WRIT - C No. 5548 of 2024 · **Writ petition disposed of (connection refused at this stage; liberty if the eviction decree is set aside/stayed)**

HEADNOTE

A tenant is an 'occupier' under Clause 2(oo) of the U.P. Electricity Supply Code, 2005, with a statutory right to apply for a connection (on an indemnity bond, Clause 4.4) and cannot be denied supply merely for want of the landlord's NOC (Dilip v. Satish; Anand Kumar). But 'occupier' means a person authorised to occupy the premises; a tenant against whom an unstayed decree of eviction operates cannot be recognised as authorised to occupy, and a connection may be refused at that stage — with liberty to apply if the decree is later set aside, recalled or stayed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::2(oo)

'Occupier' requires authorised occupation — tenant under an unstayed eviction decree

QUESTION

Is a tenant against whom an unstayed decree of eviction operates an 'occupier' entitled to a fresh connection under the Code?

HOLDING

A tenant is ordinarily an 'occupier' (Clause 2(oo)) entitled to apply for a connection on an indemnity bond and cannot be denied supply merely for want of the landlord's NOC. But 'occupier' means a person authorised to occupy; a tenant faced with an unstayed eviction decree is not so authorised, and the court declined, in its discretion under Article 226, to direct a connection at that stage — with liberty to apply if the decree is set aside, recalled or stayed. ¶ 10-17

LIMITING FACTS

An ex parte eviction decree (19.4.2018) against the tenants was pending execution with no stay; outstanding dues exceeding Rs. 3,00,000 stood on the old connection.

QUALIFIER

Liberty reserved to apply for a connection if the eviction decree is set aside, recalled or stayed.

PRINCIPLE TAGS

occupier-must-be-authorised The right of a tenant/occupier to a connection under the Code presupposes authorised occupation; it does not extend to a person against whom an unstayed eviction decree operates. (Qualifies the tenant-occupier entitlement recognised in Anand Kumar / SCJ-006.) Lead authorities: *Anand Kumar v. State of U.P.* [163340936]. ¶ 10-16

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ULTIMATE FATE OF THE EVICTION LITIGATION

The Court declined to speculate on the outcome of the pending execution/recall proceedings, deciding only that at this stage the tenants are not authorised occupiers. ¶ 15

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Dilip (Dead) through LRs. v. Satish & Others</i> 2022 LiveLaw (SC) 570 Supreme Court	Electricity is a basic amenity of which a person cannot be deprived; it cannot be declined to a tenant for the landlord's failure/refusal to issue an NOC — all the supply authority examines is whether the applicant is in occupation.	Distinguished — it does not lay down that a connection must be granted to a tenant irrespective of all other facts (here, an unstayed eviction decree). ¶ 7, 10	Petitioner	Distinguished

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Anand Kumar v. State of U.P.</i> 2023 (3) ADJ 668 (DB) [163340936] Allahabad High Court (DB)	A tenant, being an 'occupier' under Clause 2(oo), has a statutory right to apply for and obtain a connection on fulfilling the Code's conditions (mainly an indemnity bond). [SCJ-006 in this corpus.]	Distinguished — ratio held not squarely applicable, since it presupposes authorised occupation, absent here given the unstayed eviction decree. ¶ 11-14	Petitioner	Distinguished

SCJ-021 · Dr. Ashok Kumar Sharma & Another v. State of U.P. & 4 Others · 2024:AHC:31947-DB · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.

Mohd. Ashfaq Khan @ Ashfaq Khan v. State of U.P. thru. Addl. Chief Secy., Energy Deptt., Lucknow & 3 Others

Allahabad High Court (Lucknow Bench) · Division Bench · 18 February 2025 · 2025:AHC-LKO:10428-DB · WRIT - C No. 1595 of 2025 · **Writ petition disposed of; petitioner directed to apply for a fresh connection with indemnity bond/proof of possession under Clause 4.4, to be decided within one week after inspection**

HEADNOTE

Where an electricity connection is disconnected on the application of a subsequent transferee-owner while an occupant/tenant claiming possession disputes the disconnection as harassment, the occupant may apply for restoration/fresh connection in his own name under Clause 4.4 of the U.P. Electricity Supply Code, 2005 by furnishing an indemnity bond and proof of possession; the licensee may conduct an inspection to verify possession before granting the connection, without prejudice to any civil dispute over title/possession between the parties.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

An occupant/tenant whose connection was disconnected at the instance of a transferee-owner may seek a fresh connection under Clause 4.4 by furnishing an indemnity bond and proof of possession, subject to licensee inspection and without prejudice to the parties' civil rights

QUESTION

Can an occupant, whose electricity connection was disconnected upon a transferee-owner's application for permanent disconnection, obtain restoration/a fresh connection in his own name pending a possession dispute?

HOLDING

The petitioner was directed to apply for an electricity connection with an indemnity bond and proof of possession under Clause 4.4; the licensee may inspect to verify possession (hearing the transferee-owner in the process), and if there is no legal impediment and possession is proved, the connection shall be granted — without prejudice to either party's rights to pursue separate proceedings regarding possession/title. ¶ [unnumbered order](#)

LIMITING FACTS

The petitioner, claiming to be a tenant/occupant, had his electricity connection disconnected on 7.2.2025 pursuant to a permanent-disconnection application filed by the opposite party no. 4, a subsequent transferee-owner of the premises whose predecessor held the original connection.

PRINCIPLE TAGS

clause-4.4-occupant-connection-on-indemnity-bond An occupant/tenant may obtain a fresh electricity connection under Clause 4.4 on furnishing an indemnity bond and proof of possession, even amid a dispute with the property's transferee-owner, subject to licensee verification and without prejudice to civil rights. ¶ [unnumbered order](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — UNDERLYING TITLE/POSSESSION DISPUTE BETWEEN THE PETITIONER (OCCUPANT) AND OPPOSITE PARTY NO. 4 (TRANSFEREE-OWNER)

Expressly left open for separate proceedings as may be permissible in law. ¶ [unnumbered order](#)

Priya Prem v. Uttar Pradesh Power Corporation Ltd. & 4 Others

Allahabad High Court · Division Bench · 24 April 2025 · 2025:AHC:62434-DB · WRIT - C No. 11384 of 2025 · **Writ petition disposed of; petitioner directed to approach the Consumer Grievance Redressal Forum**

HEADNOTE

A grievance seeking issuance of a new electricity connection under s.43 of the Electricity Act, 2003 read with Clauses 4.4 and 7.7.2 of the U.P. Electricity Supply Code, 2005 (including a claim for penalty under s.43(3) for delay), and a demand for constitution of a Consumer Grievance Redressal Forum under the UPERC (Consumer Grievance Redressal Forum) Regulations, 2022, is to be routed through the existing/designated Consumer Grievance Redressal Forum by way of a representation, to be decided expeditiously after a hearing, rather than adjudicated directly by the writ court.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

A new-connection grievance (including a s.43(3) penalty claim) is routed through the Consumer Grievance Redressal Forum rather than decided directly in writ jurisdiction

QUESTION

Should a writ court directly decide a new-connection/penalty grievance under s.43 EA2003 and Clauses 4.4/7.7.2 of the Supply Code, or should the consumer be relegated to the Consumer Grievance Redressal Forum?

HOLDING

The petitioner was directed to file a representation before the Consumer Grievance Redressal Forum (presided over by the Sub Divisional Officer, Electricity Urban Distribution, Sub Division-IX Raptinagar, Gorakhpur) within two weeks; the Forum was directed to decide the representation within four weeks of receipt, by a reasoned order after affording the petitioner a hearing. ¶ [unnumbered order](#)

LIMITING FACTS

The petitioner sought a mandamus directing issuance of a new electricity connection (application dated 15.4.2024 pending), payment of a s.43(3) delay penalty, and constitution of a district-level Consumer Grievance Redressal Forum under the 2022 CGRF Regulations.

PRINCIPLE TAGS

[clause-7.10-forum-ombudsman-route-for-billing-grievances](#) Companion application of the CGRF-routing principle already tracked in this corpus (SCJ-076, SCJ-096) — new-connection and delay-penalty grievances under s.43/Clause 4.4/7.7.2 are likewise routed through the Consumer Grievance Redressal Forum rather than decided directly by the writ court.

¶ [unnumbered order](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE NEW-CONNECTION APPLICATION AND S.43(3) PENALTY CLAIM

Not decided; left to the Consumer Grievance Redressal Forum. ¶ [unnumbered order](#)

Teena Sehgal v. State of U.P. & 2 Others

Allahabad High Court (Lucknow Bench) · Division Bench · 10 April 2026 · 2026 SCC OnLine All 5440 · Writ - C No. 1629 of 2026 · **Writ petition disposed of; connection to be given on part-payment of dues and an indemnity bond**

HEADNOTE

An occupier of a distinct portion of premises (here a daughter-in-law residing on the ground floor, in dispute with her mother-in-law who has shifted to solar power) is entitled to a new domestic electricity connection, but cannot obtain it without paying the electricity dues attributable to that portion. With about Rs. 2.41 lakh pending for the whole premises, the Court fixed the ground-floor liability at Rs. 1,20,000 and directed the petitioner to pay 50% within two weeks and the balance in four monthly instalments, to furnish an Indemnity Bond (Annexure 4.2 of the U.P. Electricity Supply Code, 2005) for her ground-floor residence, and to pay regular bills; on the 50% payment the authority must provide the new connection on completion of formalities.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

Occupier's connection on an indemnity bond, conditioned on clearing the portion's dues

QUESTION

Can an occupier of part of a premises get a new connection despite an owner-occupier dispute and outstanding dues on the whole premises?

HOLDING

Yes, on conditions. The petitioner residing on the ground floor (undisputed) is entitled to a connection, but not without paying the dues attributable to that portion. The Court fixed the ground-floor liability at Rs. 1,20,000 (50% in two weeks, balance in four instalments), required an Indemnity Bond (Annexure 4.2) for her ground-floor residence and payment of regular bills, and directed the authority to provide the new connection on the 50% payment and completion of formalities. ¶ 3-4

LIMITING FACTS

Owner-occupier (mother-in-law/daughter-in-law) dispute with a pending civil suit; mother-in-law on the first floor shifted to solar; about Rs. 2.41 lakh pending for the entire premises.

PRINCIPLE TAGS

clause-4.4-occupant-connection-on-indemnity-bond An occupier of a distinct portion may obtain a connection on an Indemnity Bond (Annexure 4.2) despite an owner-occupier dispute, subject to clearing the dues attributable to that portion. ¶ 3-4

arrears-run-with-the-premises A new connection to a portion of premises is conditioned on payment of the electricity dues attributable to that portion; dues on the premises must be cleared before supply. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — THE OWNER-OCCUPIER CIVIL DISPUTE AND THE EXACT APPORTIONMENT OF DUES

The civil suit between the parties is pending; the Court fixed the ground-floor liability pragmatically at Rs. 1,20,000 without finally adjudicating the apportionment of the total Rs. 2.41 lakh. ¶ 2-3